

Course Outline and Resources

Online Course on Access to Justice – Part 1

This document serves a double purpose:

- It makes publicly available a curated list of resources on access to justice to help instructors integrate access to justice into their teaching.
- It presents the outline and structure of the first part of a publicly available introductory course on access to justice.

CONTEXT

This list and the associated course were created as part of the Access to Justice Education Initiative. A partnership between professors at the British Columbia Access to Justice Centre for Excellence and McGill University's Faculty of Law, the Initiative identified gaps in Canadian legal education around access to justice and developed an introductory online course and a list of resources to help fill some of these gaps.

The course is designed as a series of **ten modules**. This outline covers the first part, which is structured in four modules that cover the basics of the access-to-justice crisis: What does access to justice mean? What is the extent of unmet legal needs in Canada? What prevents people from addressing these needs? And what are the consequences for individuals, communities, and society, of leaving these needs unmet?

Each module covers one of these overarching questions, and deals with a series of sub-themes outlined below. The associated resources are those provided to students who take the online course, but they may also be helpful to instructors who wish to address these themes in their own courses.

INTRODUCTION

Why This Course Exists

SUB-THEMES

- The Canadian Bar Association's 2013 report and A2J education
- Course objectives and scope
- Overview of Part 1
- Three cross-cutting themes that run through the whole course

THREE CROSS-CUTTING THEMES

- **Indigenous worldviews and legal traditions.** Indigenous peoples have their own legal orders, which exist alongside settler law and often view justice relationally. These conceptions are key for A2J work.
- **Technology.** Technology shapes how people learn about legal problems, seek help and resolve disputes; it can lower barriers, but it can also create new ones. It is increasingly key in addressing the A2J crisis.
- **Interdisciplinarity.** Legal needs are intertwined with poverty, health, housing and family circumstances. Other fields beyond law help understand these multifaceted aspects of A2J.

RESOURCE

- Canadian Bar Association, "[Reaching Equal Justice: An Invitation to Envision and Act](#)" (Ottawa, August 2013).

MODULE 1

Foundations & Context – What is Access to Justice?

SUB-THEMES

- Laypeople's conceptions of A2J
- History and evolution of scholarly conceptions of access to justice (the five waves)
- Procedural, substantive and symbolic justice
- People-centred justice as a new, sixth wave
- BPOC conceptions of A2J
- Trans conceptions of A2J
- Indigenous legal traditions, and their conceptions of justice and access

READINGS

- Movie excerpt: "[I, Daniel Blake](#)" (dir. Ken Loach, 2016).
- Trevor CW Farrow, "[What is Access to Justice?](#)" (2014) 51:3 Osgoode Hall LJ 957 at 965-984.
- Roderick A Macdonald, "Access to Justice in Canada Today: Scope, Scale and Ambitions" in Julia H Bass, WA Bogart & Frederick H Zemans, eds, *Access to Justice for a New Century: The Way Forward* (Toronto: Law Society of Upper Canada, 2005) 19 at 19-23.
- OECD, *Framework and Good Practice Principles for People-Centred Justice* (Paris, 2021) at 26-28.
- Jérémy Boulanger-Bonnely, "[Person-Centred Justice and Dispute Resolution: The Potential of Lay Courts](#)" (2024) 39:3 CJLS 404 at 428-434.
- Constance Backhouse, "What Is Access to Justice?" in Julia H Bass, WA Bogart & Frederick H Zemans, eds, *Access to Justice for a New Century: The Way Forward* (Toronto: Law Society of Upper Canada, 2005) 113 at 113-123.
- Evan Vipond & Pierre Cloutier de Repentigny, "[Searching for Justice: Moving Towards a Trans Inclusive Model of Access to Justice in Canada](#)" (2024) 47:1 Dalhousie LJ 231 at 232-239.
- Hadley Friedland, "[Indigenous Bar Association: Accessing Justice and Reconciliation Project—Final Report](#)" (Victoria: ILRU, 2014) at 4-11.

ADDITIONAL RESOURCES

On Indigenous legal traditions and access to justice

- ILRU, "[Indigenous Law: an introduction](#)", online (video).
- Val Napoleon, "[What is Indigenous Law? A Small Discussion](#)" (Victoria: ILRU, August 2020).
- Hadley Friedland & Lindsay Borrows, "[Creating New Stories through Indigenous Law: Indigenous Legal Principles on Reconciliation](#)" (Victoria: ILRU), online.
- Hannah Askew, "[Learning from Bear-Walker: Indigenous Legal Orders and Intercultural Legal Education in Canadian Law Schools](#)" (2016) 33:1 Windsor YB Access Just 29.
- Jessica Asch & Tara Williamson, Professional Legal Training Course, "[Introduction to Indigenous Law](#)" (Law Society of British Columbia, Vancouver, 2026).

On conceptions of access to justice

- Canadian Bar Association, *Reaching Equal Justice: An Invitation to Envision and Act* (Ottawa, August 2013).
- Action Committee on Access to Justice in Civil and Family Matters, *Access to Civil & Family Justice: A Roadmap for Change* (Ottawa, October 2013).
- Mauro Cappelletti & Bryant Garth, "[Access to Justice: The Newest Wave in the Worldwide Movement to Make Rights Effective](#)" (1978) 27:2 Buff L Rev 181.
- Beverley McLachlin, "[The Challenges We Face](#)", address to the Empire Club of Canada, 2007.
- Andromache Karakatsanis, "[Welcome Remarks: Towards Justice as a Common Good](#)", address at the Opening reception of the conference of the Action Committee on Access to Justice, 26 May 2026.

MODULE 2

Mapping the Problem – Unmet Legal Needs in Canada

SUB-THEMES

- The measurement of legal needs with empirical methods, including legal needs surveys and legal capability
- Canadian data on the incidence of civil legal problems and comparison with international benchmarks
- Impact of intersectional identities on legal problems and needs
- Impact of Canada's colonial heritage on legal needs in Indigenous communities
- TRC Calls to Action and the MMIWG Calls for Justice

READINGS

- Trevor CW Farrow & Lesley A Jacobs, "Introduction: Taking Meaningful Access to Justice in Canada Seriously" in Trevor CW Farrow & Lesley A Jacobs, eds, *The Justice Crisis: The Cost and Value of Accessing Law* (Vancouver: UBC Press, 2020) 3 at 3-15.
- Advocates for International Development, *SDG 16: Peace, Justice and Strong Institutions – A Legal Guide* (2021) at 2-6.
- Laura Savage & Susan McDonald, *Experiences of serious problems or disputes in the Canadian provinces, 2021* (Ottawa: Statistics Canada, 2022) at 3-14.
- World Justice Project, *Global Insights on Access to Justice 2019* (Washington: 2019) at 4-7.
- Truth and Reconciliation Commission of Canada, *Calls to Action* (2015), calls 25-42.
- National Inquiry into Missing and Murdered Indigenous Women and Girls, "Reclaiming Power and Place: The Final Report of the National Inquiry into Missing and Murdered Indigenous Women and Girls", volume 1a (Calgary: 2019) at 623-626, 693-700.

ADDITIONAL RESOURCES

On measurement and international comparison

- Victoria Law Foundation, Hugh M McDonald & Zhigang Wei, "Justice at a disadvantage: What we know now about legal need, capability and multiple disadvantage" (Melbourne: 2025).
- World Justice Project, *WJP Rule of Law Index 2025: Canada*, online.
- OECD & Open Society Foundations, *Legal Needs Surveys and Access to Justice* (Paris: OECD, 2019).
- Canadian Forum on Civil Justice, *Cost of Justice Project*, online.

On legal problems suffered by different groups

- Government of Canada, "The Canadian Legal Problems Survey" (Ottawa), online.
This page gives access to qualitative studies led by Statistics Canada and the Department of Justice out of the Canadian Legal Problems Survey, including those on 2SLGBTQI+ communities and on older adults in Ontario.
- Adam Cotter, "Perceptions of and experiences with police and the justice system among the Black and Indigenous populations in Canada" *Juristat* (Ottawa: Statistics Canada, 2022), online.
- Tristan Marshall & Mohan B. Kumar, "Serious problems or disputes experienced by First Nations people living off reserve, Métis, and Inuit living in the provinces" (Statistics Canada, 2023), online.
- Lynn McDonald, "Elder Abuse and Neglect in Canada: The Glass is Still Half Full" (2011) 30:3 Canadian Journal on Aging 437.
- Law Commission of Ontario, "A Framework for the Law as it affects Older Adults: Advancing Substantive Equality for Older Persons Through Law, Policy and Practice" (Toronto: April 2012).

Other

- Canadian Bar Association, Standing Committee on Access to Justice, "Access to Justice Metrics: A Discussion Paper—Envisioning Equal Justice" (April 2013).

MODULE 3

The Lifecycle of Disputes – From Grievance to Resolution

SUB-THEMES

- How a legal problem becomes (or does not become) a dispute: the naming, blaming, claiming framework
- People's reactions when faced with a legal problem, and justice pathways; why people "lump it" or disengage from the formal system
- Individual explanations: motivation and social supports
- How class, race and gender shape the path from grievance to claim
- Barriers built into the design of the justice system
- Relational and community-based views of conflict as alternatives to the linear naming-blaming-claiming model

PASSAGES FROM MODULES 1-2 WHICH ARE ALSO RELEVANT TO MODULE 3

- Farrow & Jacobs, "[Introduction: Taking Meaningful Access to Justice in Canada Seriously](#)" (Module 2): revisit page 12.
- Savage & McDonald, [Experiences of serious problems or disputes in the Canadian provinces, 2021](#) (Module 2): revisit pages 9-10.
- Backhouse, "What Is Access to Justice?" (Module 1): revisit page 122.
- Friedland, "[Indigenous Bar Association: Accessing Justice and Reconciliation Project—Final Report](#)" (Module 1): revisit the wetiko / Cree and Coast Salish examples.
- National Inquiry into Missing and Murdered Indigenous Women and Girls, "[Reclaiming Power and Place](#)", volume 1a (Module 2): revisit page 625.

READINGS

- William LF Felstiner, Richard L Abel & Austin Sarat, "[The Emergence and Transformation of Disputes: Naming, Blaming, Claiming . . .](#)" (1980-1981) 15:3-4 L & Soc'y Rev 631 at 631-637.
- Rebecca L Sandefur, "[Access to Civil Justice and Race, Class, and Gender Inequality](#)" (2008) 34 Ann Rev Soc'y 339 at 346-352.
- Andrew Pilliar, "[Navigating the Paths to Justice: A Study on the Role of Social Supports in Responding to Justiciable Events](#)" (2025) 37 JL & Soc Pol'y 130 at 147-153.
- Roderick A Macdonald, "[Access to Civil Justice](#)" in Peter Cane & Herbert M Kritzer, eds, *The Oxford Handbook of Empirical Legal Research* (Oxford: Oxford University Press, 2010) 492 at 510-515.
- Rupert Ross, [Returning to the Teachings: Exploring Aboriginal Justice](#) (Toronto: Penguin Canada, 2006) at 173-179.

ADDITIONAL RESOURCES

- Patricia Ewick & Susan S Silbey, [The Common Place of Law: Stories from Everyday Life](#) (Chicago: University of Chicago Press, 1998).
- Hazel Genn, *Paths to Justice: What People Do and Think About Going to Law* (Oxford: Hart Publishing, 1999).
- Marc Galanter, "[Why the 'Haves' Come Out Ahead: Speculations on the Limits of Legal Change](#)" (1974) 9:1 L & Soc'y Rev 95.
- John Lande, "[Slices of Conflict in Life](#)" (4 October 2022), University of Missouri Research Paper.

MODULE 4

Consequences of Unmet Legal Needs

SUB-THEMES

- Individual consequences of unmet legal needs: health, financial, employment, family wellbeing
- Community and downstream public costs of unmet legal needs
- Consequences for institutions: procedural justice, legitimacy and public trust
- Disproportionate and intergenerational consequences of unmet legal needs in Indigenous communities, and the concept of “blanketing”

PASSAGES FROM MODULES 1-2 WHICH ARE ALSO RELEVANT TO MODULE 4

- Farrow & Jacobs, “[Introduction: Taking Meaningful Access to Justice in Canada Seriously](#)” (Module 2): focus on pages 13-15, the costs of unmet legal needs.
- Friedland, “[Indigenous Bar Association: Accessing Justice and Reconciliation Project—Final Report](#)” (Module 1): focus on pages 4-11 and revisit the Coast Salish example drawn from the Snuneymuxw First Nation.

READINGS

- Robin L Nobleman, “[Addressing Access to Justice as a Social Determinant of Health](#)” (2014) 21 Health LJ 49 at 64-68.
- OECD, [Equal Access to Justice for Inclusive Growth: Putting People at the Centre](#) (Paris: OECD Publishing, 2019) at 33-46.
- Tom R Tyler, [Why People Obey the Law](#) (New Haven: Yale University Press, 1990), chapter 1, “Procedural Justice, Legitimacy, and Compliance” at 3-7.
- Su-taxwiye Sarah Morales, “‘Blanketing’: Justice for First Nations People in Canada” in [Developing an Indigenous Justice Strategy: A Compilation of Thought Papers by Indigenous Legal Experts](#) (Ottawa: Justice Canada, 2023) 6 at 6-16.
- Iman Dar, Lydia Clarke-Rehman, Nazih Nasrallah, Paula Arriagada & Hyunji Lee, “[Socioeconomic and health outcomes among Indigenous people aged 15 years and older who were under the legal responsibility of the government as children](#)”, *Insights on Canadian Society* (Ottawa: Statistics Canada, 18 February 2025) at 5-11.

ADDITIONAL RESOURCES

- Hazel Genn, “[When Law Is Good for Your Health: Mitigating the Social Determinants of Health Through Access to Justice](#)” (2019) 72:1 Current Legal Problems 159.
- Lisa Moore & Trevor CW Farrow, [Investing in Justice: A Literature Review in Support of the Case for Improved Access to Justice](#) (Toronto: Canadian Forum on Civil Justice, 2019).
- Canadian Bar Association, [Reaching Equal Justice: An Invitation to Envision and Act](#) (Ottawa: Canadian Bar Association, 2013) at 13 (on the costs of inaction).
- Task Force on Justice, [Justice for All](#) (New York: Pathfinders for Peaceful, Just and Inclusive Societies, April 2019) (for a global perspective on the costs of unmet justice needs).
- Will Friend, “[The Cost of Injustice](#)”, *OECD Observer* (2019) (a short, accessible companion to the OECD chapter listed above).
- Department of Justice Canada, [Perceptions of and Confidence in Canada’s Criminal and Civil Justice Systems: Key Findings from the 2023 National Justice Survey](#) (Ottawa: February 2024) (recent Canadian data on public confidence, including a persistent confidence gap for Indigenous respondents, directly relevant to the discussion of legitimacy).
- Tom R Tyler, “Procedural Justice, Legitimacy, and the Effective Rule of Law” (2003) 30 Crime & Justice 283 (for a later, more developed statement of the theory introduced in this module).